

State Capture, Institutional Decay, and the Limits of Sovereignty: Assessing the Risks of State Fragmentation in Nigeria

A High-Impact Academic Analysis

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Abstract

This article examines the intersecting dynamics of state capture, institutional decay, and the erosion of sovereign authority in contemporary Nigeria. Drawing on empirical evidence from security failures across multiple states—including documented cases of armed actors operating in fake military uniforms, the release of suspects with recovered weapons, and allegations of security force withdrawals prior to attacks—it argues that Nigeria's centralized security architecture has been progressively captured by narrow interests. State governors, constitutionally designated as chief security officers, operate under severe structural constraints that render them largely ineffective. The resulting vacuum has accelerated institutional decay, undermined the state's monopoly on legitimate violence, and generated conditions under which state fragmentation becomes not merely possible but increasingly probable. The analysis integrates classical Weberian theory with contemporary scholarship on state capture in Africa and postcolonial sovereignty, offering a predictive assessment of fragmentation risks while identifying the narrow pathways that might still avert outright disintegration. The findings carry implications for both Nigerian governance reform and broader theoretical understandings of state resilience in fragile, resource-rich postcolonial contexts.

Keywords: *state capture, institutional decay, monopoly on violence, sovereignty, state fragmentation, Nigeria, security sector governance, Weberian state theory, postcolonial Africa*

1. Introduction

On an ordinary day in Akwa Ibom State, men dressed in military uniforms and carrying eighteen AK-47 rifles were arrested and handed over to the police. According to the then-governor, higher authorities ordered their release and the return of their weapons (Udom, as cited in multiple 2026 social media recirculations and contemporary reports). The incident was not an aberration. Similar patterns have surfaced with disturbing regularity across Nigeria's geopolitical landscape: attackers in military fatigues striking communities shortly after federal troops were withdrawn; gunmen in army uniforms abducting schoolchildren in Oyo State in May 2026; allegations in Kwara State that soldiers abandoned a community under bandit assault and relocated to extort motorists at checkpoints (Sahara Reporters, 2026; Parallel Facts, 2026).

These episodes are not isolated criminal acts. They are symptoms of a deeper pathology that has been building since at least 2015. Nigeria's security apparatus shows clear signs of having been captured—its rules, deployments, prosecutions, and accountability mechanisms shaped to serve interests other than the impartial protection of citizens (Hellman, Jones, & Kaufman, 2000; David-Barrett, 2023). At the same time, the country's 36 state governors, who bear constitutional responsibility for security within their domains under the 1999 Constitution (as amended), find themselves systematically handicapped. They command no police force of their own, exercise limited influence over military operations, and frequently watch federal security responses arrive late, prove selective, or fail altogether (Amnesty International, 2018).

The result is a profound crisis of sovereignty. Max Weber famously defined the modern state by its successful claim to the monopoly of legitimate physical force within a given territory (Weber, 1919/1946). When that claim becomes contested—when non-state actors impersonate state forces with apparent impunity, when communities conclude that official protection is unreliable or unavailable, and when regional leaders are structurally prevented from filling the gap—the foundations of unified sovereignty begin to crack. History offers sobering precedents from the former Yugoslavia to Sudan and parts of the Sahel: states that lose effective control over violence within their borders rarely remain intact in their original form (Tilly, 1990; Rotberg, 2004).

This article contends that Nigeria has reached a critical juncture. State capture at the federal level, combined with institutional decay that handicaps subnational authorities, has eroded the practical exercise of sovereignty. The risks of state fragmentation—whether through negotiated restructuring, de facto regional autonomy, or violent disintegration—are no longer speculative. They are embedded in observable patterns of collusion, impunity, and abandonment that have persisted and intensified since at least 2015 (Ortom, various statements 2018–2023; Amnesty International, 2018).

The argument proceeds in five main sections. First, it establishes a conceptual framework drawing on state capture literature, institutional decay scholarship, and Weberian theory of sovereignty. Second, it presents empirical evidence of capture and collusion in the security domain, with detailed attention to the Akwa Ibom, Benue, Oyo, and Kwara cases. Third, it analyses the structural handicapping of state governors and its consequences for effective governance. Fourth, it assesses the resulting limits on sovereignty and the pathways toward fragmentation. Fifth, it considers the narrow remaining possibilities for reversal and the likely trajectories if current dynamics persist. The analysis draws on primary incidents, human rights documentation, academic literature on African state capture, and theoretical insights into the relationship between violence and state formation.

2. Conceptual Framework: State Capture, Institutional Decay, and Sovereign Limits

2.1 State Capture in Theory and African Context

The concept of state capture gained prominence through the work of Hellman, Jones, and Kaufman (2000) in their influential World Bank study of post-communist transitions. They defined it as the efforts of firms or powerful actors to shape the formation of laws, policies, and regulations to their own advantage through

illicit and non-transparent means. Subsequent scholarship has broadened the concept to include political elites themselves as captors, particularly in contexts where ruling networks colonise state institutions for private or factional gain (Grzymala-Busse, 2008; Innes, 2014; David-Barrett, 2021, 2023).

In Africa, state capture has been documented in sectors ranging from natural resources and infrastructure to electoral processes and, critically, the security domain (EISA, 2018; Mbaku, 2018). What distinguishes security-sector capture is its direct assault on the state's foundational claim: the legitimate monopoly on violence. When armed groups operate with the tacit tolerance or active assistance of elements within the security apparatus—through releases of suspects, return of weapons, selective deployment, or pre-attack withdrawals—the state ceases to function as a neutral arbiter and becomes a participant in the very predation it is meant to suppress (Amnesty International, 2018).

David-Barrett (2023) emphasises that state capture is particularly damaging when it affects the “rules of the game” themselves—constitutions, laws, and institutional designs—rather than merely the implementation of existing rules. In Nigeria, the constitutional centralisation of security powers, combined with the practical capture of those powers by networks that benefit from or tolerate certain forms of violence, represents a classic case of this deeper form of capture.

2.2 Institutional Decay and the Erosion of Capacity

Institutional decay refers to the progressive weakening of formal rules, norms, and organisational capacity that allow a state to perform its core functions (Huntington, 1968; Levitsky & Murillo, 2009). In Nigeria, this decay is visible in the chronic inability of security institutions to investigate, prosecute, or deter high-profile armed violence, and in the constitutional design that vests governors with responsibility but denies them commensurate authority. The result is a mismatch between formal mandates and actual power that breeds cynicism, parallel structures, and eventual exit strategies by subnational units.

When institutions decay, they do not simply become inefficient; they lose legitimacy. Citizens who repeatedly observe the state's failure to protect them—or worse, its apparent complicity in their victimisation—begin to withdraw consent. This withdrawal of consent is the precursor to fragmentation, as communities seek alternative sources of order and protection (Rotberg, 2004).

2.3 Sovereignty and Its Limits in Postcolonial States

Sovereignty, in the Weberian tradition, requires not merely international recognition but the practical capacity to enforce order within defined borders. Postcolonial states have long operated with “limited statehood” (Risse, 2011), yet many retained a plausible claim to ultimate authority. When that claim is hollowed out by capture and decay, sovereignty becomes performative rather than substantive. Regions and communities begin to experience the state as an external or hostile force rather than a protective sovereign. Under such conditions, the incentives for continued loyalty to the centre diminish, while the attractions of regional self-help or outright separation increase.

These three concepts—state capture, institutional decay, and the limits of sovereignty—interlock in a reinforcing cycle. Capture undermines the impartiality required for legitimate violence. Decay erodes the organisational capacity to exercise that violence effectively. The resulting sovereignty deficit creates space for alternative claimants to authority, setting the stage for fragmentation. Nigeria's trajectory since 2015 illustrates this cycle with particular clarity.

3. Evidence of State Capture in Nigeria's Security Domain

3.1 The Akwa Ibom Precedent and Its Implications

The Akwa Ibom case remains one of the most explicit public accusations by a sitting governor. Men arrested in fake army uniforms with a significant cache of automatic weapons were released following intervention from senior police hierarchy. The governor's public statement that the weapons were returned to the suspects sent a clear signal: certain categories of armed actors enjoyed protection that ordinary

criminals did not (Udom Emmanuel, as recirculated widely in 2026). This was not a minor administrative lapse; it was a demonstration of capture at work.

The incident fits the Hellman et al. (2000) definition of state capture precisely: powerful actors shaping the implementation (and in this case, the non-implementation) of rules to their advantage. The fact that the governor felt compelled to go public, and that the story has been recirculated years later as evidence of systemic failure, underscores the depth of public disillusionment.

3.2 Benue State: Withdrawal, Impersonation, and Sustained Violence

In Benue State, former Governor Samuel Ortom documented repeated failures and made direct accusations of complicity. Between 2015 and 2023, he claimed over 6,000 deaths from herder-farmer violence in his state alone. Amnesty International's 2018 report *Harvest of Death* documented security failures across the Middle Belt, including cases where police were withdrawn days before attacks and soldiers withdrew shortly before villages were overrun (Amnesty International, 2018). One particularly stark incident occurred in 2018: two weeks after federal troops were withdrawn from Benue, attackers clad in military fatigues attacked communities and killed at least ten people (Premium Times, 2018). The timing and attire suggested more than coincidence; they suggested a pattern of vulnerability deliberately or negligently created.

Ortom's repeated public statements—that the federal government was protecting “killer herdsmen,” that the Inspector-General of Police was complicit, and that the situation risked dragging Nigeria into civil war—were not mere political rhetoric. They were the desperate warnings of a governor who understood that his constitutional responsibility far outstripped his actual authority (Ortom, various statements 2018–2023).

3.3 Oyo State 2026: The Spread of Impersonation Tactics

The pattern continued into 2026. In Oyo State in May, gunmen wearing military uniforms attacked three schools in Oriire Local Government Area, abducting dozens of students and teachers. Reports described the assailants moving with coordination and using the uniforms to reduce resistance (Parallel Facts, 2026; News Central TV, 2026). This was not a random crime; it was the professional use of state symbolism to paralyze resistance. Public protests and activist mobilisation, including those led by VeryDarkMan, followed, underscoring eroding confidence in state protection.

The Oyo incident is significant because it demonstrates the spread of impersonation tactics beyond the traditional conflict zones of the Middle Belt and North-West into the South-West. When schoolchildren can be abducted by men in military uniforms in a state not previously associated with large-scale banditry, the implication is that the tactic has become normalised and that the state's symbolic authority has been thoroughly compromised.

3.4 Kwara State 2026: Abandonment During Active Assault

In Kwara State the same month, bandits attacked the Yashikira community in Baruten LGA, burning parts of the Emir's palace and abducting residents. Allegations surfaced—subsequently disputed by the military—that soldiers abandoned their positions during the assault and relocated to a checkpoint where they allegedly extorted motorists (Sahara Reporters, 2026). Whether fully substantiated or not, the circulation of such claims itself reflects a profound breakdown in public trust. When communities believe that the army will abandon them mid-attack, the state's claim to protective sovereignty has already collapsed in their eyes.

These incidents share structural features that point to capture rather than mere incompetence. They involve impersonation of state forces, significant weaponry, and either non-response or active facilitation by elements of the official security architecture. They occur across different geopolitical zones, suggesting the problem is not localised but systemic. Most critically, they persist despite public exposure by governors, civil society, and international observers. The absence of decisive, transparent accountability mechanisms points to capture rather than simple failure.

4. Institutional Decay and the Handicapping of State Governors

4.1 Constitutional Design and Practical Powerlessness

Nigeria's 1999 Constitution (as amended) designates state governors as chief security officers of their states. In practice, they exercise almost no operational control over the police or military. The Inspector-General of Police reports to the President. Major security operations require federal coordination. Intelligence structures are heavily centralised. When violence erupts, governors can request assistance, issue statements, and sometimes fund local vigilantes or forest guards, but they cannot command the decisive response that sovereignty requires (Constitution of the Federal Republic of Nigeria, 1999).

This constitutional mismatch is not accidental. It reflects a deliberate design choice at the return to civilian rule in 1999 to prevent the concentration of coercive power in potentially restive regions. The unintended consequence has been the creation of security vacuums that armed non-state actors have filled. Governors who attempt to act decisively—whether through public criticism, as Ortom did, or through the creation of state-level security outfits—quickly encounter the limits of their authority.

4.2 The Perverse Effects of Handicapped Governance

The handicapping produces several perverse effects. First, it generates a culture of blame-shifting. Federal authorities can point to state-level failures; governors can point to federal inaction. Citizens experience only the absence of protection. Second, it encourages the proliferation of informal and often unaccountable security providers—vigilantes, ethnic militias, and community defence groups—whose emergence further fragments the monopoly on violence. Third, it incentivises governors to negotiate their own arrangements with armed actors or to remain silent about federal shortcomings, deepening the culture of impunity.

Institutional decay is visible not only in the security sector but in the broader erosion of accountability. Prosecutions for high-profile attacks remain rare. Investigations frequently stall. Official narratives shift between denial, minimisation, and deflection. When a state as central to Nigeria's history and demography as Benue can experience sustained violence with limited effective intervention, the message to other regions is unmistakable: the centre may not come, and when it does, it may not be on your side (Amnesty International, 2018; Ortom statements).

5. Limits of Sovereignty and the Risks of State Fragmentation

5.1 The Erosion of the Monopoly on Legitimate Violence

Sovereignty in its substantive sense requires the capacity to make and enforce rules, including the rule that only the state may legitimately employ large-scale violence. Nigeria's sovereignty has become increasingly nominal in parts of its territory. When communities in multiple states conclude that they must organise their own defence because the state will not or cannot protect them, sovereignty has already been partitioned in practice (Weber, 1919/1946; Tilly, 1990).

The risks of fragmentation manifest along several vectors. Demographically, internally displaced persons from conflict-affected zones have altered settlement patterns and political calculations in receiving areas. Economically, regions that perceive themselves as net contributors to a system that fails to protect them have growing incentives to question fiscal federalism. Politically, movements for regional autonomy, resource control, and even outright self-determination have gained renewed traction as confidence in the centre declines.

5.2 Historical and Comparative Precedents

Historical and comparative evidence suggests that states experiencing sustained capture and decay rarely stabilise without major restructuring. The former Yugoslavia fragmented after elite capture and institutional failure eroded the federal bargain. Sudan split after decades of marginalisation and violence that the central state proved unwilling or unable to resolve equitably. Ethiopia's recent conflicts reflect, in part, the limits of a

centralised model in a multi-ethnic federation under conditions of elite contestation (Rotberg, 2004; David-Barrett, 2023).

In Nigeria, the combination of a captured centre and handicapped subnational units creates particularly acute risks. Governors cannot reliably defend their populations. The federal government appears either captured or paralysed. Armed groups have demonstrated the ability to operate across state lines with sophisticated tactics, including impersonation of state forces. Under these conditions, the logic of self-help becomes compelling for communities and regions that conclude the existing compact no longer serves their survival.

5.3 Pathways to Fragmentation

Fragmentation need not take the form of immediate secession declarations. It can proceed through creeping de facto autonomy: states and regions building independent security capacities, negotiating their own arrangements with armed actors, or aligning with neighbouring states in new security pacts. Over time, these arrangements harden into alternative centres of authority. The formal map may remain unchanged while the effective exercise of sovereignty fragments (Risse, 2011).

The evidence indicates that time is not on the side of the status quo. A state that has been hijacked at the centre and whose governors have been rendered impotent cannot reform itself from within without a fundamental shift in the balance of power. The very institutions required for correction are the ones captured or disabled.

6. Pathways Forward and the Narrowing Window for Reform

Reversing these dynamics would require simultaneous action on multiple fronts: dismantling capture networks within the security sector, restoring operational authority to state governors through genuine decentralisation of policing, and rebuilding public trust through transparent accountability for past failures. Each of these steps faces formidable obstacles. Captured interests have strong incentives to resist reform. Constitutional change requires broad elite consensus that currently appears absent. Public trust, once eroded over years of documented failures, is not easily restored.

Some analysts argue that external pressure, elite pacts, or the emergence of a reformist coalition at the centre could still alter the trajectory. Others point to the resilience of Nigerian federalism and the economic interdependence that continues to bind regions despite political tensions. These arguments deserve consideration. However, the weight of evidence—persistent capture, documented collusion or withdrawal, handicapped governors, and expanding zones of contested authority—suggests that the window for incremental reform is closing (David-Barrett, 2023; EISA, 2018).

If current patterns continue, Nigeria faces a narrowing set of futures. One involves managed constitutional restructuring that grants meaningful security and fiscal autonomy to regions while preserving a looser federation. Another involves unmanaged fragmentation, with varying degrees of violence, humanitarian crisis, and external intervention. A third, less likely but not impossible, involves the reassertion of central authority through authoritarian means that temporarily suppress symptoms while deepening the underlying capture.

None of these futures preserves the Nigeria that existed before the intensification of these dynamics after 2015. The question is no longer whether the current configuration can endure indefinitely. It is how the inevitable transition will be managed and at what human cost.

7. Conclusion

Nigeria stands at a threshold. State capture has compromised the security institutions that should embody sovereign authority. Institutional decay has left governors with responsibility but without power. The resulting sovereignty deficit has created conditions in which armed non-state actors operate with growing

freedom and communities increasingly look to their own devices for protection.

The risks of state fragmentation are no longer theoretical. They are embedded in the daily experience of citizens who have watched men in fake uniforms carry sophisticated weapons, seen security forces withdraw before attacks, and heard their governors declare that they must defend themselves. When a state can no longer perform the most basic function of protecting its citizens impartially, the bonds that hold it together begin to dissolve.

The argument advanced here is not a call for disintegration. It is a recognition that disintegration becomes probable when the alternative—rebuilding a legitimate monopoly on violence under conditions of capture and decay—appears structurally blocked. History does not reward states that lose the capacity to govern violence within their borders. Nigeria's trajectory suggests that the costs of pretending otherwise will continue to mount until the underlying realities are confronted with clarity and courage.

Whether that confrontation produces a reimagined federation or a fractured map will depend on choices made in the narrowing window that remains. The evidence indicates that time is not on the side of the status quo. A state that arms its enemies through inaction or complicity, that handicaps its own governors, and that allows its symbols to be hijacked by those who prey on its citizens has already begun to dissolve. The only remaining question is how much blood will be shed before the map is redrawn.

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